

Noise Laws Help, Hinder

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By Clive Young.

For decades, concert venues and their neighbors have clashed over loud shows--one man's music is another's miserable racket--and this summer has seen a number of local disputes around the U.S. gain high profiles due to noise ordinance issues.

In Des Moines, IA, the manager of the [Val Air Ballroom](#) was arrested in August after he refused to stop a concert so that police could take a one-minute baseline ambient sound reading. Meanwhile, in Salt Lake City, UT, residents filed suit against a popular club, The Rail, saying they've complained dozens of times about loud music invading their homes, despite police reports that found the area outside the venue quiet. And in New York City, two synagogues are battling to have a long-running Coney Island concert series shut down in part because a rock show went over 68 dB. The offending artist? Neil Sedaka.

Despite sound technology advances ranging from line array directivity to elaborate acoustic measurement software, many concerts still drive neighbors crazy. Causes for such disputes can include bad soundproofing, poor system design or inconsistent sound measurement parameters—and yes, rude bands and cranky neighbors too. Unfortunately, noise ordinances are typically enacted by non-audio professionals, who sometimes are not properly advised on reasonable limits; alternately, some older ordinances have not have kept up with changing times in their neighborhoods, or they may be vaguely worded.

"City to city, ordinances vary but often the hardest to address are 'disturbance clauses', which may entitle residents to a subjective standard such as 'peaceful and quiet enjoyment of their property' instead of objective sound pressure limitations," said Adam Shulman, a consultant at New York-based SIA Acoustics, which among many projects, oversees audio for "Mad. Sq. Music Series" concerts, held in Manhattan's Madison Square Park.

"At these concerts, there isn't a fixed SPL limitation per se, but we must always be sensitive to the community," said Shulman, referring to the Mad. Sq. Music shows. "No one comes out with a meter, because the absolute SPL is not the bottom line. To have an adversarial relationship with the community would go against the fundamental goals of the park and the series--so if there is a concern, it is addressed. We have not had many issues, however."

For Madison Sq. Music shows, that means examining everything from the tools used to build temporary staging, to studying off-axis performance of the PA, to carefully moderating stage volume so that monitors don't blast neighboring buildings. It's a clear-cut case of striving to serve the surrounding community, artists and audience simultaneously. In other cases, however, it's hard to tell whether such a objective can possibly reached.

Take the Coney Island brouhaha--the dispute is over a free concert series held each summer in Asser Levy Park since 1991, sponsored by Borough President Marty Markowitz. During that entire time, the series violated a forgotten noise law that stated amplified sound was illegal within 500 feet of a house of worship. Earlier this year, Markowitz proposed a \$64 million, 8,000-seat venue to be built in the park; opponents soon after discovered the law and insisted it be enforced, as two synagogues sit 300 feet from the current bandshell. In response, a new law was quickly passed that concerts could not exceed normal ambient levels by 10 decibels within 15 feet of the synagogues. As a result, the Neil Sedaka show exceeded the ambient level (58 dB), hitting peaks of 90 dB at the houses of worship. On the other hand, a subsequent B-52's concert which followed the law was marred by the audience chanting "crank it up" and verbally abusing the FOH engineer.

That incident mirrors concerns that Val Air Ballroom manager Scott Lockhart voiced when Des Moines police asked him to stop a concert so that they could take an ambient sound reading. Lockhart was arrested after repeatedly refusing to do so, later telling the Des Moines Register, "I had close to 2,000 people in the building that night. If I had stopped the show, who knows what would have happened." A recently enacted local noise ordinance states that a concert can't be more than three dB above the ambient sound level; Lockhart has requested a jury trial.

For many venues--and band engineers--ordinances aren't an issue. Eddie Mapp, FOH engineer for Stone Temple Pilots, explained, "I don't mind as long as there are guidelines. In Europe, if there's a limit of 100 dB, they do an Leq measurement of 15 minutes, so your average has to be 100. If you have mellow songs of 96 and occasionally you peak out at 104, as



Like many live sound engineers, Andy Ebert (left) and Eddie Mapp, who respectively tackle monitors and FOH for Stone Temple Pilots, have to ensure their concerts follow local noise ordinances.



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long as it averages out, that's plenty of room to work in."

Nonetheless, where the readings are taken can be a concern. "Sometimes, it's the back-fence line," said Mapp. "Other times, it's at FOH—and that's not fair when you're mixing under visqueen or a tarp; with all those high frequencies, sometimes I've measured almost a 3 dB difference when you're in a tent." Stone Temple Pilots' monitor engineer, Andy Ebert, also pointed out, "In Switzerland, they measure in front of the stage; that's tricky because we have a guitar player who's not on in-ears--it's 108 dB A-weighted on stage."

Raw SPL is not the only issue when it comes to placating neighbors, however. "It's just as much about tonality and impulsiveness as absolute sound pressure," said SIA's Shulman, "and that's where the 'disturbance factor' comes in. It's often the case that a sound with a particular tonality or impulsiveness can be more disturbing than another, though it may be lower in overall sound pressure."

Ultimately, the relationships between venues and their neighbors have to be about mutual respect and a little give and take—and occasionally, a little extra give. "For live events, you must consider the aspects like the scenic and structural design, sound system and acoustics, artist and stage setup, the show schedule, and put yourself in the shoes of the community to understand where the disturbance may occur," said Shulman. "What can you do to improve their overall experience? Maybe it's just giving them tickets to the concert or inviting them to participate--that kind of thing can work. In some cases, the answers are not entirely technical."

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